

26TRCV00800 26TRCV00800

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Case Number: 26TRCV00800 Hearing Date: September 2, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

ERIN

FARAGALLA and JACKSON FARAGALLA, by and through his Guardian ad Litem ERIN

FARAGALLA,

Plaintiff,

Case No.:

26TRCV00800

vs.

[Tentative]

Sustained/granted

JOE

PONCIANO, JR., LESLIE PONCIANO, and DOES 1 - 25, inclusive

Defendants.

Hearing

Date: September
2, 2026

Moving Parties: Defendants Joe Ponciano Jr. and Lesli
Ponciano

Responding Party: Plaintiffs Erin and Jackson Faragalla

HEARING: Demurrer with MTS

The Court considered the moving,
opposition, and reply papers.

RULING

The Court
sustains the Demurrer with leave to amend.

The Court grants the
Motion to Strike with leave to amend.

BACKGROUND

On March
3, 2026, Plaintiffs Erin
and Jackson Faragalla filed the Complaint against Defendants Joe Ponciano Jr.
and Lesli Ponciano alleging causes of action for breach of the implied warranty
of habitability, negligence, nuisance, IIED, and invasion of privacy.

On June 30, 2026, Defendants filed
the Demurrer with Motion to Strike.

On August 20, 2026, Plaintiffs filed
the Opposition

On August 26, 2026, Defendants filed
the Reply.

LEGAL

STANDARD

A demurrer can be

used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and confer

Before filing a demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

On June 23, 2026, Defendants sent a meet and confer email to Plaintiff regarding the instant demurrer, which Plaintiff did not respond to. Therefore, the Court finds that Defendants have satisfied the meet

and confer requirements.

Defendants demur to the fourth and fifth causes of action.

Fourth

Cause of Action – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

To state a cause of action for IIED Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.)

Defendants contend that Plaintiffs' cause of action for IIED is not adequately pled and that the Complaint fails to allege sufficient facts to support it. Defendants argue that the Complaint is entirely conclusory and does not set forth sufficient facts regarding Defendants' conduct. According to Defendants, the alleged conduct, even if taken as true, does not rise to the level of outrageous conduct because it is limited to a failure to repair an alleged defect in the Subject Property and amounts to no more than mere negligence. Defendants emphasize that conduct is outrageous only when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 130.) A failure to act of this kind, Defendant argues, cannot satisfy the outrageous conduct that a claim for IIED requires.

Defendants further argue that the emotional distress alleged is insufficient. Defendants state that although emotional distress may consist of any highly unpleasant mental reaction, a plaintiff must prove that the distress was severe and not trivial or transient. (*Wong v. Tai Jing* (2010) 189 Cal.App.4th 1354, 1376.) Defendants rely on authority holding that allegations of anxiety and nervousness causing a loss of sleep reflect only transient distress and do not state a cause of action for IIED. (*Girard v. Ball* (1981)

125 Cal.App.3d 772, 788.)

In opposition, Plaintiffs dispute Defendants' contention that the Complaint alleges only transient emotional distress. Plaintiffs allege that Defendants were aware of the defective and dangerous conditions, including mold, and that Defendants' prior tenants had made documented mold complaints. Plaintiffs further allege that Defendants failed to address the issue appropriately and failed to advise Plaintiff Erin Faragalla of the existence of mold before she entered into the subject lease. According to Plaintiffs, Defendants avoided providing the mold disclosure documentation required by Health and Safety Code section 26148 and, with absolute knowledge of the existence of mold, made a conscious choice not to provide the statutorily required disclosure. Plaintiffs allege that Plaintiff Erin Faragalla notified Defendants of the dangerous condition and requested repairs, that Defendants did not adequately repair the numerous dangerous conditions promptly, and that as a proximate result of Defendants' failure to repair the conditions within a reasonable time Plaintiffs suffered serious emotional and physical distress.

Responding to Defendants' argument that a mere failure to adequately remediate does not rise to the level of outrageous or extreme behavior, Plaintiffs argue that a landlord's failure to make repairs over an extended period of time that causes physical damages to a tenant is extreme and outrageous behavior. (*Aweeka v. Bonds* (1971) 20 Cal.App.3d 278, 281.)

Here, the Complaint alleges that "Defendants' failure to maintain the Premises in a condition fit for human occupation after renting the Premises to Plaintiff ERIN FARAGALLA and their repeated failure to repair the defects or have them repaired promptly and adequately when requested by Plaintiff ERIN FARAGALLA to do so, or at all, as alleged in this Complaint, were knowing, intentional, and willful, and done with reckless disregard to the probability of causing Plaintiffs emotional distress." (Complaint ¶ 37.) However, the Complaint's allegation that the Defendants' failure to repair the defects was knowing, independent, and willful is conclusory and cannot be considered. (*Daar*, supra, 67 Cal.2d 695, 713.) Furthermore, without a willful failure to correct a defect, a finding of outrageous conduct cannot be made.

Therefore, the Court

sustains the Demurrer as to the fourth cause of action with leave to amend.

Fifth

Cause of Action – Invasion of Privacy

“[T]he action for intrusion has two elements: (1) intrusion into a private place, conversation or matter, (2) in a manner highly offensive to a reasonable person.” (Huntingdon Life Sciences, Inc., *supra*, 129 Cal.App.4th 1228, 1259.)

Defendants contend that Plaintiffs' cause of action for invasion of privacy is not supported by sufficient facts. Defendants argue that the Complaint consists entirely of boilerplate, conclusory claims that do not show how or when the alleged tort occurred, and that in the absence of those facts there can be no intrusion for this cause of action to arise, nor any way to determine whether the alleged intrusion was highly offensive to a reasonable person as the tort requires. (Huntingdon Life Sciences, Inc, *supra*, 129 Cal.App.4th 1228, 1259.) Defendants emphasize that the offensiveness of an intrusion is measured by the degree of the intrusion, the context, conduct, and circumstances surrounding it, the intruder's motives and objectives, the setting into which the intrusion occurs, and the expectations of those whose privacy is invaded, all of which Defendants argue would have to be surmised on the present pleading. (Sanchez-Scott v. Alza Pharmaceuticals (2001) 86 Cal.App.4th 365, 377.)

Defendants further argue that the Complaint contains no facts describing an invasion of privacy in relation to the alleged entries into Plaintiffs' units and instead rests mainly on an alleged failure to comply with Civil Code section 1954 and paragraph 31 of the lease agreement. According to Defendants, an alleged failure to abide by Civil Code section 1954 alone is insufficient to support a cause of action for invasion of privacy. Defendants likewise contend that a potential technical violation of a lease notice provision is insufficient to constitute the egregious tortious violation of bodily or personal sanctity that this cause of action requires, and that such a violation would instead sound in contract. Defendants maintain that even if Plaintiffs' allegations are taken as true, they do not establish the level of offensiveness necessary to sustain the claim.

In opposition, Plaintiffs contend that they have adequately pled the cause of action for invasion of privacy. Plaintiffs point

to paragraph 44 of the Complaint, in which they allege that Defendants' agents, at the direction of Defendants, intentionally intruded into the Premises without complying with Civil Code section 1954 and paragraph 31 of the lease regarding service of notice, and utilized veiled reasons for entry for the purpose of gathering evidence against Plaintiffs to support Defendants' various litigation threats, specifically by filming and photographing Plaintiffs' personal belongings.

Here, the Complaint alleges that "Defendants' agents, at the direction of Defendants, intentionally intruded into the Premises without complying with Civil Code §1954 and paragraph 31 of the lease regarding serving notice, and utilizing veiled reasons for entry for the purpose of gathering evidence against Plaintiffs to support Defendants' various litigation threats to defend against this instant lawsuit, to wit: filming and photographing Plaintiffs' personal belongings." (Complaint ¶ 44.)

"No community could function if every intrusion into the realm of private action gave rise to a viable claim. Hence, no cause of action will lie for accidental, misguided, or excusable acts of overstepping upon legitimate privacy rights. In light of such pragmatic policy concerns, a court determining whether this requirement has been met as a matter of law examines all of the surrounding circumstances, including the degree and setting of the intrusion and the intruder's motives and objectives. Courts also may be asked to decide whether the plaintiff, in attempting to defeat a claim of competing interests, has shown that the defendant could have minimized the privacy intrusion through other reasonably available, less intrusive means." (Hernandez v. Hillside, Inc. (2009) 47 Cal.4th 272, 295.)

Here, the Court finds that Plaintiff's allegation that Defendants used veiled reasons to enter Plaintiff's home is conclusory, especially given that Plaintiff is also alleging an active mold infestation that Defendant failed to repair. Consequently, the Court finds that the Complaint fails to allege the intrusion was highly offensive given the surrounding circumstances.

Therefore, the Court sustains the Demurrer as to the fifth cause of action with leave to amend.

Motion

to Strike

California law

authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (*Pierson v Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342; see also *City & County of San Francisco v Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (*Warren v. Atchison, Topeka & Santa Fe Railway Co.* (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also *Duffy v. Campbell* (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc., § 436.)

Defendants request

that the Court strike the requests for punitive damages and attorney's fees.

Punitive Damages

"In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil

Code § 3294 subd. (a).)

Under

the statute, malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” and oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Code Civ. Proc. § 3294(c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) Also, “[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences.... [Citation.]” (*Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1299.)

To survive a motion

to strike punitive damages, the Complaint must contain “specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious.” (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.)

Here, the Court has

reviewed the Complaint and finds that it does not contain specific factual allegations showing malice.

Therefore, the

Court grants the Motion to Strike as to the request for punitive damages with leave to amend.

Attorney's fees

“Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided.” (Code Civ. Proc., § 1021.)

Here, the Complaint fails to allege that the lease included an attorney's fees provision or any other justification for an award of attorney's fees.

Therefore, the Court grants the Motion to Strike as to the request for attorney's fees with leave to amend.